

11. 9:00 AM CASE NUMBER: C24-02750
CASE NAME: CURTIS CANNEDY VS. BJ'S RESTAURANT INC.
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLAINTIFF'S FIRST AMENDED COMPLAINT**
FILED BY: BJ'S RESTAURANT INC.
TENTATIVE RULING:

Denied as moot. See line 10.

12. 9:00 AM CASE NUMBER: C25-00276
CASE NAME: CHRISTOPHER SEARS, PHD VS. VIVIANE SIINO, PHD
***HEARING ON MOTION IN RE: ATTORNEYS FEES AND COSTS**
FILED BY: SIINO, VIVIANE, PHD
TENTATIVE RULING:

Summary

Defendant Viviane Siino Ph.D. ("Defendant" or "Siino") Motion for Attorney's fees & Costs against Plaintiff Christopher Sears Ph.D. ("Plaintiff" or "Sears") is **granted** as set forth herein.

Background

On September 16, 2026, Defendant Viviane Siino Ph.D. ("Defendant" or "Siino") filed a Motion for Attorney's fees & Costs against Plaintiff Christopher Sears Ph.D. ("Plaintiff" or "Sears") in the amount of \$23,035 (fees) and \$258.22 (costs) based Cal. Code of Civ. Proc § 425.16(c)(1). The Motion is supported by a Notice, Memorandum of Points and Authorities, and the Declaration of Counsel Joshua Jachimowicz. This Motion is made on the grounds that Plaintiff is prevailing party in the Anti-SLAPP case on four of the five causes of action listed in Plaintiff's complaint. Defendant did not prevail in striking the second cause of action for libel. (See the Court's order granting Defendant's Special Motion to Strike on August 6, 2025.)

On February 3, 2026, Plaintiff filed an opposition, supported by his Declaration, requesting, essentially that the request for fees be either denied or reduced by fifty percent, on the grounds that Defendant did not prevail on the second cause of action and that the fees were excessive.

In reply, Defendant asserts that appointment is not proper under decisional authority, and that a review of the family law case was necessary to prepare for the Anti-SLAPP motion.

Analyses

Cal Code Civ Proc § 425.16(c) permits a prevailing defendant on a special motion to strike to recover that defendant's attorney's fees and costs. Under this provision, "any SLAPP defendant who brings a successful motion to strike is entitled to mandatory attorney fees." (*Ketchum v. Moses (2001) 24 Cal.4th 1122, 1131*. See also *Mann v. Old Time Quality Service, Inc.* (2006) 139 Cal.App4th 328, 338-339.

The decisional law interpreting Section 425.16 is illustrative. In *Dove Audio v. Rosenfeld, Meyer & Susman* (1996) 47 Cal. App. 4th 777, 785 the Court of Appeal held that a trial court did not abuse its discretion in awarding over \$27,000 in attorney fees to a law firm that prevailed in its special motion

to strike a recording company's defamation complaint as an anti-SLAPP suit (CCP §425.16). While the award was generous, the trial court did not exceed the bounds of reason, given that it included attorney fees and costs incurred in connection with the appeal, and CCP § 425.16 does not preclude recovery of appellate fees and costs."

The Court finds that it is not necessary that the prevailing party succeeds in striking all causes of action to recover attorney's fees. In *ComputerXpress, Inc. v. Jackson* (2001) 93 Cal.App.4th 993, which was cited by both parties, the court considered the issue of whether a defendant who partially prevails on an anti-SLAPP motion (where the court strikes some but not all of the challenged causes of action) is a "prevailing" defendant under section 425.16, subdivision (c). (*ComputerXpress*, at pp. 1016–1020.) In examining this question, the court rejected the plaintiffs' reliance on Civil Code section 1717 and instead focused on the statutory distinction between prevailing defendants and prevailing plaintiffs. (*ComputerXpress*, at pp. 1016–1018.) Unlike a prevailing defendant who is entitled as a matter of right to attorney fees, a prevailing plaintiff is entitled to attorney fees only if the anti-SLAPP motion was "frivolous or is solely intended to cause unnecessary delay." (§ 425.16, subd. (c).)

Finding this distinction reflected the Legislature's strong preference for awarding attorney fees to successful defendants, the court stated the phrase "prevailing party" **should be interpreted broadly to favor an award of attorney fees to a partially successful defendant.** (*ComputerXpress*, *supra*, at p. 1018.) The *ComputerXpress* court additionally relied on similar judicial interpretations of statutory schemes that likewise distinguish between prevailing plaintiffs and defendants in the fee-shifting analysis. (Id. at pp. 1018–1020; see *Hensley v. Eckerhart* (1983) 461 U.S. 424, 429; *Los Angeles Times v. Alameda Corridor Transportation Authority* (2001) 88 Cal.App.4th 1381, 1390–1392; see also *Wallace v. Consumers Cooperative of Berkeley, Inc.* (1985) 170 Cal. App. 3d 836, 846.

Based on these authorities, the *ComputerXpress* court held the defendants were prevailing parties because they were successful **in striking five of the nine challenged causes of action alleged in the complaint.** (*ComputerXpress*, *supra*, 93 Cal.App.4th at p. 1020.) The court stated the defendants' lack of success on a portion of the motion was relevant to the amount of fees awarded, and not on the issue of whether they were prevailing parties. (Id. at p. 1019.) The court thus remanded for the trial court to determine the attorney fees incurred for bringing the anti-SLAPP motion challenging the causes of action stricken from the complaint. (93 Cal.App.4th at pp. 1020–1021.)

Applied here, Defendant was successful in striking all but the second cause of action for libel. There is currently a hearing scheduled for Defendant's Demurrer on this second cause of action set for April 8, 2026 in Department 16. The Court finds that Plaintiff's argument that fees should be denied in their entirety is inconsistent with the foregoing authorities. Plaintiff's apportionment argument is unavailing.

Plaintiff also claims that the fees sought by Defendant should be reduced by fifty percent, as they are excessive and includes a review of unrelated family law case litigation. This argument, in part, has some merit and warrants further analyses. In reviewing Counsel's declaration, the Court conducted an independent review of the fees charged by Defendants, in light of the *Lodestar* factors, the amount of time spent by counsel and his office on the relevant litigation, and the 15 years of experience of Defendant's attorney. In reviewing these factors, the Court concludes that while the

amount of fees, \$23,035, is reasonable, some further reductions in fees are warranted.

Here, Defendant's counsel spent only 18.8 hours at \$650.00 per hour (\$12,200). Given the complexity of an Anti-SLAPP motion, this expenditure is valid. However, the Court finds that paralegals and law clerks could have achieved some additional efficiencies in the 61.8 hours devoted to reviewing the family law files and in preparing the initial drafts of the Anti-SLAPP motion. As such, the Court finds that 50, instead of 61.8, hours is reasonable. Accordingly, the amount of hours for legal assistance will be reduced from 61.8 hours to 50 hours. At \$175 per hour, the reasonable amount of fees for this work should be \$8,750.

Therefore, the Court finds that total fees (\$12,200 + \$8,750) in the amount of \$20,950 is reasonable. The Court also finds that costs incurred in the amount of \$258.22 is reasonable.

Ruling

1. Defendant Viviane Siino Ph.D. ("Defendant" or "Siino") Motion for Attorney's fees & Costs against Plaintiff Christopher Sears PhD ("Plaintiff" or "Sears") is **granted** as set forth herein.
2. Plaintiff shall pay the amount of \$20,950 to Defendant's Counsel no later than thirty (30) days from the date of this order. Failure to pay this amount may result in the Court considering terminating sanctions or issue sanctions.
3. Defendant's counsel shall prepare and e-file a proposed order conforming to this ruling, attaching the tentative ruling, no later than five (5) days from the date of this hearing.

13. 9:00 AM CASE NUMBER: C25-01880

CASE NAME: CTE GROUP VS. GENERAL MOTORS, LLC

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: GENERAL MOTORS, LLC

TENTATIVE RULING:

Before the Court is a demurrer by General Motors, LLC to Plaintiff's complaint. Also before the Court is a motion to strike portions of the complaint. For the reasons set forth, hearing on the demurrer and motion to strike is continued to **9:00 a.m. on March 18, 2026** for the parties to meet and confer under Code of Civil Procedure sections 430.41(a) and 435.5(a). The parties shall meet and confer **by March 4, 2026**, and defendant shall file the required "meet and confer" declarations showing compliance with Code of Civil Procedure sections 430.41(a) and 435.5(a) **by March 9, 2026**.

Code of Civil Procedure section 430.41(a) requires the party intending to file a demurrer to meet and confer with the party whose pleading is being challenged in person, by videoconference, or by telephone prior to filing the demurrer and to file a declaration attesting to the parties' compliance with the requirement. The statute requires the meet and confer to occur "at least 5 days before the date the responsive pleading is due." (Code Civ. Proc. § 430.41(b) [emphasis added].) The statute continues: "If the parties are not able to meet and confer at least 5 days before the date the responsive pleading is due, the demurring party shall be granted an automatic 30-day extension of time within which to file a responsive pleading, by filing and serving, on or before the date on which a demurrer would be due, a declaration stating under penalty of perjury that a good faith attempt to meet and confer was made and explaining the reasons why the parties could not meet and confer. The 30-day extension shall commence from the date the responsive pleading was previously due, and